

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	29-07-2026 10:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	29-07-2026 10:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Petroleum And Natural Gas
विभाग का नाम/Department Name	Indian Oil Corporation Limited
संगठन का नाम/Organisation Name	IoCl Bongaigaon Refinery
कार्यालय का नाम/Office Name	IoCl Bongaigaon Refinery
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :duggalv@indianoil.in Buyer Email id: elizan@indianoil.in
कुल मात्रा/Total Quantity	80
वस्तु श्रेणी /Item Category	RETURN BEND SR A234 WP9 3 half IN X 12.2MM , RETURN BEND LR A234 WP9 3 half IN X 12.2MM , BEND,180,SR, BW, AS, A234, WP22, 4IN, 40 , ELBO, 90, LR, BW, CS, A234, WPB, 5IN, 40 , ELBO, 90, SR, BW, CS, A234, WPB, 5IN, 40 , ELBO, 45, SR, BW, AS, A234, WP11, 6IN, 40
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	Procurement of Bends and fittings of Furnaces of Bongaigaon Refinery
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	UPVC Pipe Fittings For Use With UPVC Pipes in the Suction and Delivery Lines of Agricultural Pumps conforming to IS 13593, Metal Beds (V3)
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	Return Bends confirming to IS 1239 (Part 2)
बीओक्यू शीर्षक /BOQ Title	Procurement of Bends and fittings of Furnaces
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC),Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	RETURN BEND SR A234 WP9 3 half IN X 12.2MM
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	5 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Item wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई के लिए आरक्षित / Reserved for Make In India products

एमआईआई के लिए आरक्षित / Reserved for Make In India products	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Bid reserved for Make In India products: : Procurement under this bid is reserved for purchase from Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. However, eligible micro and small enterprises will be allowed to participate. The minimum local content to qualify as a class 1 local supplier is denoted in the bid document. All bidders must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which the bid is liable to be rejected. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020 . In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

2. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in

respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

मूल्यांकन विधि(मदवार मूल्यांकन विधि) / **Evaluation Method** (Item Wise Evaluation Method)

Contract will be awarded schedule wise and the determination of L1 will be done separately for each schedule. The details of item-consignee combination covered under each schedule are as under:

मूल्यांकन अनुसूचियां / Evaluation Schedules	वस्तु/श्रेणी / Item/Category	मात्रा / Quantity
Schedule 1	Return Bend Sr A234 Wp9 3 Half In X 12.2mm	50
Schedule 2	Return Bend Lr A234 Wp9 3 Half In X 12.2mm	10
Schedule 3	Bend,180,sr, Bw, As, A234, Wp22, 4in, 40	5
Schedule 4	Elbo, 90, Lr, Bw, Cs, A234, Wpb, 5in, 40	5
Schedule 5	Elbo, 90, Sr, Bw, Cs, A234, Wpb, 5in, 40	5
Schedule 6	Elbo, 45, Sr, Bw, As, A234, Wp11, 6in, 40	5

RETURN BEND SR A234 WP9 3 Half IN X 12.2MM

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ / **Technical Specifications**

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/**Consignees/Reporting Officer and Quantity**

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jay Kumar Prajapati	783385,IOCL Bongaigaon Refinery	50	120

RETURN BEND LR A234 WP9 3 Half IN X 12.2MM

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jay Kumar Prajapati	783385,IOCL Bongaigaon Refinery	10	120

BEND,180,SR, BW, AS, A234, WP22, 4IN, 40

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jay Kumar Prajapati	783385,IOCL Bongaigaon Refinery	5	120

ELBO, 90, LR, BW, CS, A234, WPB, 5IN, 40

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jay Kumar Prajapati	783385,IOCL Bongaigaon Refinery	5	120

ELBO, 90, SR, BW, CS, A234, WPB, 5IN, 40

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jay Kumar Prajapati	783385,IOCL Bongaigaon Refinery	5	120

ELBO, 45, SR, BW, AS, A234, WP11, 6IN, 40

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jay Kumar Prajapati	783385,IOCL Bongaigaon Refinery	5	120

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Scope of Supply

Scope of supply (Bid price to include all cost components) : Only supply of Goods

3. Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

4. Generic

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

5. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

6. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

BUYER ADDED BID SPECIFIC ATC

1.	IOCL Tender Reference No.	N2NE26012
2.	Tender / Item Description	Procurement of Bends and fittings of Furnaces of Bongaigaon Refinery
3.	Location (s) of Work	IOCL Bongaigaon Refinery, Chirang, Assam; Pin Code - 783385
4.	Earnest Money Deposit (EMD)/BSD	Bid Security Declaration (BSD) to be submitted by all bidders in lieu of EMD including all those bidders if they are exempted from submission of EMD (e.g. MSE / Start-up / any exempted category bidders). Bidder has to submit mandatorily Bid Security Declaration, on their Company Letterhead as per the attached format (Annexure-6) In lieu of Earnest Money Deposit irrespective of bidders exempt from submission of EMD. Note: In case bidder does not submit Bid Security Declaration in-lieu of EMD, then their bid shall be liable for rejection.

5.	Contact Person Details	S No	Subject	Name	Designation	Contact No	Mail id
		1	Tender /GEM /SAP PO/BG related issue	Ms. N E Hansdah	SMTM(P)	03664253344	elizan@indianoil.in
				Mr V Duggal	DGM(Mat)	03664253341	duggalv@indianoil.in
		2	Technical issue / Drg /QAP approval	Mr. Ashish Kumar	MNM	03664-253528	kundur@indianoil.in
				Mr C K Manthey	DGM(MN)	03664-253501	mantheyck@indianoil.in
		3	Transportation/ Material Gate pass	Mr Jay Prajapati	MTM	03664253358	prajapatijs@indianoil.in
				Mr P Ekka	SMTM(S)	03664253351	ekkap@indianoil.in
		4	Payment related issues	Mr J Prajapati	MTM(S)	03664253358	saurabh_singh2@indianoil.in
				Mr P Ekka	SMTM(S)	03664253351	ekkap@indianoil.in
				Mr A Meena	ACO	03664253213	meenaa21@indianoil.in
6.	Integrity Pact (IP)	Not Applicable					
7.	Pre-Qualification Criteria (PQC)						
7a.	Technical PQC: NA						
	Not applicable						

Commercial Experience PQC: Applicable (Note: Bidders are requested to submit Notarized copy of documents against Commercial PQC.)

Proof of executed order(s) for **“Supply of AS/SS or any other Higher Metallurgy Fittings in any petroleum refinery/ petrochemical plants/ Hydrocarbon fertilizers/ Hydrocarbon Industry”** by the bidder during the last five years ending on the last day of the month immediately preceding the month in which the **original** bid submission end date falls, should be considered as under:

- (1) Copy of one executed order of value not less than **Rs. 5.28 Lakh;**
OR
- (2) Copy of two executed orders each of value not less than **Rs. 4.22 Lakh;**
OR
- (3) Copy of three executed orders each of value not less than **Rs. 3.17 Lakh.**

The last date of order execution shall fall in the above-mentioned period.

- I. Landed cost including Freight P&F and GST/taxes etc shall be considered for arriving at the executed order value. However, in case any other cost component are not indicated separately and are already included in the Purchase Order Value, as evident from the submitted Purchase order copies, then executed order value shall include such inclusive cost components also for the purpose of PQC evaluation.
- II. Foreign orders in currency other than USD shall be converted to USD on the date of the said Purchase Order (Global Tenders). Orders in currency other than INR shall be converted to INR on the date of the said Purchase Order (National Tenders). RBI reference rate shall be considered for forex conversion.
- III. Multiple GeM contracts on same vendor against single GeM bid can be clubbed as single order for the purpose of meeting value against commercial pre-qualification criteria.
- 7B.** For fulfilling the commercial experience criteria any one of the following documents may be considered as valid proof for meeting the criteria:
 - a) Purchase Order along with Invoice(s) {with self-certification that supplies against invoice has been successfully executed}. Uploading the invoice(s) on the e-portal is considered as self-certification by the bidder that supplies against the invoices have been successfully executed to the required value.
 - b) Purchase Order along with Bank Certificate indicating payment against the PO.
 - c) Purchase Order along with Execution certificate by client indicating executed order value. In case the execution certificate does not mention the executed value, the bidder shall have to submit other documents as mentioned here indicating executed value.
 - d) In case vendor cites any reference of job executed for IOCL, internal records of IOCL shall be considered.
 - e) In case multiple orders have been placed against a single rate contract and the cumulative order value satisfies the PQC, it may also be considered, subject to submission of other documents as mentioned above. Multiple GeM contracts against one GeM bid on a particular vendor is to be considered as a single PO for PQC evaluation.

Acceptance of PQ Documents of related / unrelated parties shall be as follows:

Please refer ITB (Instruction to Bidders): The table for different scenarios, Financial credentials and Techno-commercial experience criteria required.

7c. Financial PQC: Not Applicable

NA

Delivery Period for Supply

Supply - 04 months from the date of award of contract on GEM.

8. IOCL reserves the right to reject any deviation to delivery terms not meeting IOCL's requirement after giving one chance to the bidder to accept IOCL's requirement

Third Party Inspection: Applicable

IOCL approved TPI Agencies. TPI is to be carried out from IOCL approved Third party agency.

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1. TUV Rheinland (India) Pvt. Limited.
2. LRQA Inspection Services India LLP.
3. Industrial Inspection & Verification Service (India) Pvt. Ltd.).
4. Projects and Development India Limited.
5. Edlipse Engineering Global Private Limited.
6. Apave TIV India Private Limited
7. International Certification Services Pvt. Ltd.
8. SGS India Private Limited
9. Meenaar Global Consultants LLP
10. Bureau Veritas (India) Private Limited
11. TQ Cert Services Pvt. Ltd.
12. TUV SUD South Asia Pvt. Ltd.
13. TUV India Private Limited
14. Cerfiacion Engineers International Ltd.
15. IR Class Systems and Solutions Private Limited
16. Intertek India Pvt. Ltd.

" TPI Agencies need to submit, in advance, the details of Inspector (Qualification, Experience) who will be carrying out the Inspection along with items being inspected to concerned refineries Location, preferably 7 days before visiting the vendor site.

" Once the vendor selects a particular TPI, its name is shared with IOCL. In case vendor changes the TPI, the vendor shall share the reason for change of TPI and its name with IOCL again.

" In case of material dispatch delayed by more than 30 days post final inspection by TPI Agency, it should be recertified by TPI Agency, and expenses will be borne by the vendor

10.

IBR:Not Applicable

Not Applicable

11.

Payment Term

Supply: 100% payment will be released within 30 days of receipt and acceptance of materials at site and online uploading of bills in VIM Portal.

12.	Guarantee/Warranty (Defect liability period)
	Warranty/Guarantee shall be 18 (eighteen) months from the date of delivery or 12 (twelve) months after the same have been put in service or commissioned, whichever is earlier.
13.	PWCAMC: Not Applicable
	NA
14.	Performance Bank Guarantee (PBG): Not Applicable
	NA
15.	Tendered item quantity Divisible / Non-Divisible
	The tendered quantity can be split for Purchase Preference benefits to the bidders against various policies . Item Quantity is Divisible.
16.	Applicability of DMIS policy
	Not Applicable
17.	Minimum % of Local Content required in this tender
	Class-I reserved item. Minimum 50% Local content for Class-I Bidders
	Note to Bidder

16.A. Bidder to submit signed and stamped **Annexure-1 to 15** uploaded in ITB along with Tender Documents.

B. Technical Note for Bidders

1. All items should confirm to technical specification sheet IOC/R/ML/Butt Welded, Socket Welded and Screwed Pipe Fittings/2012 Revision-2 attached with tender. All bidders to acknowledge and submit these technical specs sheets as a token of acceptance failing to which offer will be liable for rejection.

2. Bidders to submit material test certificates with respect to chemical and mechanical properties as per relevant codes and standards, along with the materials.

3. After placement of PO bidder to submit QAP with 7 days from placement of PO and do the material testing activities as per QAP. IOCL QAP Enclosed

4. Bidders to submit IRN/TPI Certificate, Material Test Certificate & Guarantee certificate along with the material for material acceptance at site.

5. Negative tolerance in thickness not acceptable.

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Pre Bid Meeting

NA

18

Quantity Tolerance: Applicable/Not Applicable

NA

19

Reverse Auction: Not Applicable

20

Evaluation basis: Item wise Lowest

7. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/**Disclaimer**

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---